



CENTER FOR STRATEGIC LEADERSHIP U.S. ARMY WAR COLLEGE

INTERNATIONAL STRATEGIC CRISIS

ISCNE

NEGOTIATION EXERCISE



Jammu & Kashmir Scenario



UNITED STATES ARMY
WAR COLLEGE

The International Strategic Crisis Negotiation Exercise

Exercise Description and Guidance

Introduction

The International Strategic Crisis Negotiation Exercise (ISCNE) uses experiential learning to educate participants in the process of crisis negotiations at the international/strategic level.

Participants, as part of a delegation, will be challenged in leadership styles, negotiating techniques, and communications abilities to reach their team's desired end-state. Each delegation engages with counterparts, within the framework of a United Nations conference, to try to resolve a long-standing and potentially volatile crisis. An actual complete resolution to the presented issues is not an expectation, nor is it a reality. Delegations will have to contend with teams that each have their own desired end-state goals.

The crisis being exercised the crisis in question is the present-day conflict between the countries of China, India, and Pakistan over the region of Jammu and Kashmir. Countries with interests in this region and involved in the negotiations are Russia, the United Kingdom, and the United States. The diverse residents of Jammu and Kashmir are represented at this conference as well. A Special Representative of the Secretary-General (SRSG) represents the UN. They will monitor developments, mediate negotiations and discussions, and report findings.

The key documents provided are the Scenario, Privileged Instructions, and relevant reference documents. As the name implies, the Privileged Instructions are protected communications from each government to their negotiation delegations regarding the impending round of talks and need to be handled as such.

This type of exercise works best when conducted within the confines of a strict schedule. This allows the parties involved time to negotiate issues, pause to evaluate and adjust their negotiation strategies, and schedule and respond to negotiation requests. The structure may induce some frustration, but this is not unrealistic. Within the context of this exercise all parties have accepted a UN negotiation model which establishes the structure and employs a control group concept.

Preparation for the Exercise

It is highly recommended that each delegation finds time to meet and prepare prior to the exercise.

Each delegation must have both a Head of Delegation (HOD) and a Team Communicator.

As the title implies, the HOD is the delegation lead. This person is responsible for providing direction to the delegation and is responsible to their superiors, in the form of their Foreign Minister/Secretary (FM/S) as role-played by Mr. Ed "Cliffy" Zukowski. Which negotiation sessions the HOD elects to attend (or not to attend), is symbolic of their significance within diplomatic circles.

The Team Communicator is a full team member that has the additional duty of being the delegation's point of contact with the exercise control team. They are responsible for requesting and processing ad hoc negotiation invitations, team-to-team communication and diplomatic communiques as detailed below. This duty is critical for exercise execution.

Exercise Operations

As part of the United Nations' efforts, all parties agreed to the imposition of certain predetermined sessions and control mechanisms to ensure the proper conduct of the negotiations. For that purpose, a UN Control Group (UNCG) has been established, as the technical and administrative branch of the SRSG, to help manage the conduct of this peace conference and ensure implementation of the agreed mechanisms. These mechanisms are:

- **Ad Hoc Negotiation Scheduling:** Ad Hoc negotiation sessions are scheduled via an electronic system accessed by your delegation's communicator (not by direct delegation-to-delegation communication). Ad Hoc sessions must adhere to the negotiation periods set out in the exercise schedule. Sessions may be bilateral or multilateral and may be requested for 15- or 30-minute increments. Invited parties may *accept*, *decline*, or *ignore* the invitation. Once all invitees have responded, the system notifies all parties on whether the session will be held and if so, where. **Ad Hoc Negotiation Sessions only happen if all parties agree to attend.** A delegation may request and schedule as many negotiation sessions as it can support within the allotted time. **If you accept an invitation, you must attend the session.**

The SRSG will be available to meet with delegation(s) during Ad Hoc Negotiation sessions. All requests to meet with the SRSG are initiated in the same manner as Ad Hoc negotiation sessions. The SRSG has the option to call their own Ad Hoc Negotiation sessions; if so, these requests **cannot** be declined or ignored.

- **Diplomatic Communiqués:** These are messages to your nation's leadership to either provide reports or to request guidance. Mr. Ed "Cliffy" Zukowski role-plays the FM/S and will provide his cell phone number to the HOD and Team Communicator so that they can text him directly. If a delegation would like to meet with him, he will come to your room during Team Meeting periods.
- **Team-to-Team Communication:** Delegations are allowed to communicate with each other as they determine appropriate but **may not conduct negotiations outside of formally scheduled negotiation sessions.**
- **Exercise Schedule:** Adherence to the exercise schedule will be strictly enforced. Team Meeting periods are an extremely important element, as they are a time for internal team communication, evaluation/reevaluation of positions and interests of the other delegations, consultation with their FM/S, scheduling negotiation sessions, and establishing talking points for the next round of negotiations. Negotiation sessions between delegations can only take place during the scheduled negotiation periods.

Conduct of the Exercise

The exercise begins following the exercise overview brief. At the opening plenary session, chaired by the SRSG, role-playing portion of the exercise begins. Participants should remain in role throughout. Negotiation sessions and team meetings are confidential but conversations in common or public areas are subject to intelligence collection.

For the opening plenary each delegation should be prepared to present a 2–3-minute opening statement. Upon conclusion of the plenary participants will move to their team rooms and prepare for the commencement of negotiations. The first negotiation period consists of pre-scheduled bilateral sessions. Thereafter, all negotiation sessions will be Ad Hoc, as described above. The first day concludes with an internal team evaluation of the day's events.

The second day begins with a Team Meeting period followed by the resumption of negotiations. At the end of the day teams will reassemble for a closing plenary chaired by the SRSG. *During the closing plenary each delegation will brief their current positions, assess the progress made, and offer options for any proposed way forward.* Specific instructions on the closing plenary will be sent to each delegation during the last Ad Hoc negotiation session. At the conclusion, the plenary participants will come out of role and the Army War College will facilitate an after-action review.

International Strategic Crisis Negotiation Exercise

Jammu and Kashmir Scenario



This exercise introduces and reinforces negotiation techniques and strategic decision-making in a scenario-driven gaming environment.

The scenario utilized for this exercise depicts the continuing situation in the Jammu and Kashmir region. The scenario's purpose is to provide a near real world situation and set the stage for delegation team negotiations which are the primary actions of the exercise.

Although incorporating real historical, and recent, events this scenario is completely hypothetical and has been designed solely as an aid to achieve participant educational learning objectives. **All materials in this exercise are notional for educational purposes only. There is no attempt to be predictive or reach a real-world solution.**

Read and understand the materials in this priority and order:

- | | |
|--------------|---|
| Required: | Your Delegation's Privileged Instructions (separate document) |
| | Developments in the past 15 years (pp. 11-17) |
| | Significant Events (pp. 18-19) |
| | Negotiation Chapters and Issues (pp. 20-25) |
| Recommended: | Brief History (pp. 3-11) |

Brief History

Introduction

The region of Kashmir lies amid the Himalayan Mountains, in the northwest corner of the Indian subcontinent. During colonial rule the region was a single “princely state,” called Jammu and Kashmir. Princely states were sovereign entities indirectly controlled by the British Raj but let by local rulers. Following Pakistani and Indian independence from the United Kingdom in 1947, the once united region became a disputed territory, with both countries laying claim to the entirety of the former princely state. Today, because of several wars, the old princely state is split between and administered by India, Pakistan, and China. The sub-region known today as Jammu and



Jammu and Kashmir

Kashmir is an Indian occupied entity administered by New Delhi and is comprised of three smaller regions: the Kashmir Valley, Jammu, and Ladakh. Pakistan occupies and administers Azad Kashmir and most of the Northern Areas, specifically Gilgit-Baltistan. China controls Aksai Chin and the Shaksam Valley (also known as the Trans-Karakoram Tract). The Line of Control (LoC) has been the de facto international border between the areas administered by India and Pakistan since 1972. India formally claims all the former princely state, based on the ruler’s accession of the state to India; Pakistan’s position is that the former princely state’s status should be determined according to the tenets of the UN Security Council resolutions of 1948 and 1949. India has a separate border dispute with China over Aksai Chin, also formerly part of the princely state. India and China also remain at odds over territorial issues along the central part of their border and over the Indian state of Arunachal Pradesh, but these are handled separately from those regarding Jammu-Kashmir.

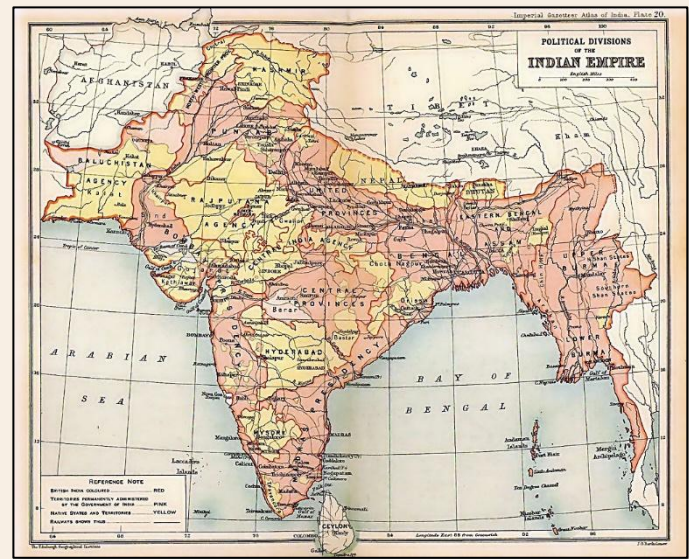
The Indian state of Jammu and Kashmir has a population of more than 12 million, which is majority Muslim, due in part to the departure of the Hindu population because of disturbances that occurred in the 1990s. Within the state, Kashmir Valley is predominately Muslim, in Jammu the population is two-thirds Hindu and one-third Muslim, and Ladakh is equally populated by Muslims and Buddhists with a small Hindu community. About 3.5 million people live in the territories administered by Pakistan, with Azad Kashmir and the Northern Areas almost entirely Muslim. Chinese administered Aksai Chin is largely unpopulated but contains a road network considered vital to China’s worldwide trade initiatives.

The Indian Subcontinent Before Independence (Prior to 1947)

For nearly one thousand years, the Indian subcontinent was a part of several Muslim empires. During this time, the ruling Muslim population coexisted relatively peacefully with the Hindu population. European imperialism began to erode local rule of the subcontinent in the mid-18th century. The United Kingdom established a particularly strong foothold in the region through a strong economic, financial, and trade presence. Following a local rebellion (1857-1858), the British

government established direct rule over most of the subcontinent, maintaining control with a surprisingly small military presence and a just as small, but highly regarded, civil administration. This tightened British rule, however, sparked new movements for independence.

Some parts of the subcontinent were overseen by traditional princes, and as Britain consolidated its rule those princes continued as titular sovereigns, with Britain exercising indirect control and acknowledged by the princes as the "paramount power." One of these princely states was Jammu and Kashmir. The Hindu Maharaja of Jammu and Kashmir presided over a Muslim-majority population, a factor that would become central to the region's later history. The Maharaja ran the state through non-Kashmiri Hindu administrators while many of the impoverished Muslim population worked within an indentured labor system.



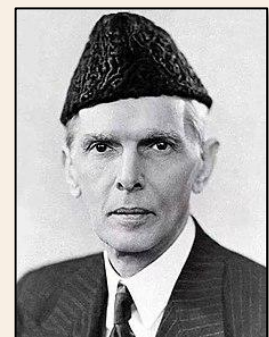
British Raj (1858-1947) *note princely states in yellow

World War I brought British demands for soldiers from drawn from the region's populations plus other support for the war effort. In its aftermath, the nationalist movement for independence intensified. Initially, there were two primary foci for this movement: a primarily Muslim movement calling for restoration of the Caliph following the overthrow of the Ottoman emperor, known as the Khilafat Movement; and a movement built around the Indian National Congress (INC), founded in 1883, ironically by an Englishman. Even though the INC was seen by Muslims as a Hindu-centric organization, Mohandas Gandhi's movement of protest and non-cooperation brought the Congress to the fore as a major political actor. Other critical leaders included Jawaharlal Nehru, later independent India's first prime minister.

Nationalism made its appearance in Jammu and Kashmir as well, but there it was directed as much against the Maharaja as against the British. In 1932, Sheikh Abdullah founded the state's first political party, the Jammu and Kashmir National Conference, which called for support for all oppressed Kashmiris. Kashmir was famous for its syncretistic culture: Sheikh Abdullah, known as the "Lion of Kashmir," was the region's principal political leader during this period and was widely accepted among Kashmiri Hindus as well as by his own Muslim community.

Partition and Conflict (1947-1999)

Following World War II, Britain began to relinquish its empire. In 1946, the newly elected British government accelerated the timeline for withdrawal from the Indian subcontinent, with independence to be granted the following year. By this time, the All-India Muslim League had come into existence, headed by Muhammad Ali Jinnah, subsequently the first Governor General of Pakistan. Following the passage by the Muslim League of a resolution in 1940 calling for a separate Muslim state, this became its principal demand. In 1947, months before independence was to be granted, nationalist leaders acquiesced to the British decision to divide the subcontinent into two states along religious lines. In August of 1947 the formal Partition would see the predominantly Hindu areas become part of India, and the predominantly Muslim areas part of Pakistan. Partition was accompanied by tremendous and violent movements

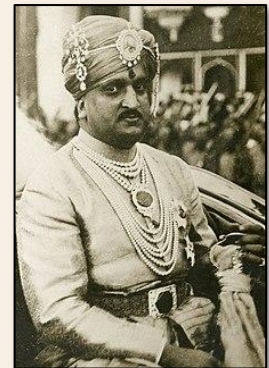


Muhammad Ali Jinnah

of millions of people who found themselves on the “wrong” side of the new boundary. In northern India and most of Pakistan, virtually all minority populations either migrated away or were killed; however, elsewhere in India and in a handful of places in Pakistan some minorities remained. The new international borders also divided the Indus River system. The situation quickly raised concerns that, in the continued absence of an agreement on Indus water rights, water disputes could exacerbate already high tensions and increase the potential for conflict.

The princely states were expected to remain intact and were granted the right to decide to which state they would accede. Most acceded to the contiguous country, and in most cases, the princely ruler and population was of the same religion as the neighboring region of Pakistan or India. Jammu and Kashmir was one of three princely states that did not choose between joining India or Pakistan prior to Partition. In the princely state of Jammu and Kashmir, Sheikh Abdullah leaned toward accession to India, but others favored joining Pakistan. In later years, substantial pro-independence sentiment developed. The Maharaja, a Hindu himself, ultimately controlled the decision. While still considering accession, he signed an interim agreement with Pakistan to continue trade and communications and set up temporary water sharing. India also allowed trade and diplomatic relations to continue until the Maharaja decided.

Ultimately, the Maharaja decided to join India, but only after government-backed Pakistani tribesmen attacked the Kashmir Valley, initiating the First Kashmir War in October of 1947. Pakistan attempted to coerce Jammu and Kashmir into accession by delaying essential supplies, but this tactic only drove the Maharaja to seek India’s assistance to expel these militants. India conditioned any assistance on the accession of Jammu and Kashmir to India. The Maharaja agreed and signed on the accession agreement on October 26, 1947, which Pakistan then refused to recognize. Indian troops arrived in Jammu and Kashmir shortly afterward, and the resulting First Kashmir War between India and Pakistan persisted for months.



Maharajah
Sir Hari Singh

As tensions escalated in 1948, at Indian’s request the United Nations Security Council addressed the issue of Pakistan and India’s dispute over Jammu and Kashmir. The council approved three resolutions intended to resolve the crisis:

- Resolution 38: Called on Pakistan to remove the Pakistani tribesmen fighting in Jammu and Kashmir from the state and asked India to reduce its forces in the area
- Resolution 39: Created a three-member commission that would assist the parties in resolving the conflict
- Resolution 47: Increased the commission to five members, created a military observer group, and called on the parties to prepare for a plebiscite (a direct vote of the population) to determine the future status of Jammu and Kashmir

The ceasefire that officially ended the First Kashmir War was put into place on January 1, 1949, as the United Nations Military Observer Group in India and Pakistan (UNMOGIP) arrived to monitor the situation. Once more, the UN emphasized that a plebiscite should be conducted to determine the will of the Kashmiri people, stipulating that Pakistan was to pull back its armed forces from the state and “use its best endeavors” to secure the withdrawal of its tribesmen. Neither the pullback nor the plebiscite ever occurred.

The Indian-administered state of Jammu and Kashmir was given “special status” as outlined in Article 370 of the Indian Constitution. This article, which went into full effect in 1954, stated that the Indian government was only permitted to dictate matters of foreign relations, defense, and

communication – for all other matters Kashmiris had autonomy. Meanwhile, India attempted to further integrate Jammu and Kashmir into the rest of India.

Relations between India and Pakistan worsened as the status of Jammu and Kashmir remained unresolved. Several UN-sponsored efforts to negotiate a solution in the late 1940s failed, as did a brief diplomatic probe by the United States soon after President Kennedy took office. The most recent negotiation effort with international participation came in 1962, following India's defeat by China in a short border war. The United States and the UK persuaded India to participate in talks with Pakistan and were actively involved in trying to bring the parties' positions together – hovering outside the room "like the ghost of Banquo," in the words of John Kenneth Galbraith, then US Ambassador to India. In the first round a proposal was made to divide Kashmir between the two countries, though the location of the dividing line remained unclear. A complex boundary proposal developed by the United States was received coolly in India and rejected out of hand in Pakistan. After several more rounds India proposed turning the ceasefire line into an international boundary, while Pakistan resolutely claimed almost the entire disputed area. A US-UK proposal to divide the Kashmir Valley itself fared no better. The parties failed to find a resolution after six rounds of talks. Again, Galbraith summed it up: the United States had "succeeded in bringing the Indians and Pakistanis into new opposition to ourselves."

In 1965, another war broke out between the countries. Pakistani forces organized Operation Gibraltar, an attempt to infiltrate Jammu and Kashmir to incite rebellion. Indian forces retaliated, crossing the ceasefire line in August. Shortly thereafter, despite some gains by the Pakistani Army, Indian forces moved into Pakistan itself and advanced against Lahore. Although Indian forces were unable to capture the city, hostilities continued until February 1966. International pressure, led by the UN, convinced both nations to agree to a ceasefire and withdraw troops to pre-August lines, followed by an unconditional ceasefire in September 1966. The Soviet Union hosted a peace conference in Tashkent, which restored the territorial status quo ante.

During the years following the resolution, India and Pakistan accused each other of hundreds of ceasefire violations. Although officially at peace, there was no trust or even functional relations between the two countries.

The next India-Pakistan war, in 1971, arose from causes entirely separate from Kashmir. Pakistan's brutal repression of political dissent in its Eastern wing, located on the other side of nearly 1000 miles of Indian territory, intensified a growing nationalist movement there and caused an estimated 10 million refugees to flee from East Pakistan into India. A Pakistani attack on Indian air bases hastened the intervention of the Indian army. In December 1971, the Indian military forced the surrender of the Pakistani army in Dhaka, and the new nation of Bangladesh was born from the former lands and peoples of East Pakistan.

That war had important consequences for Kashmir, and for India-Pakistan relations. Leaders of the two nations met in Simla India in 1972 and agreed on "rules of the road" for their relationship. This agreement once again restored the de facto boundary, now referred to as the Line of Control (LoC); provided for the repatriation of some 90,000 Pakistani soldiers from Bangladesh to Pakistan; and included some still-disputed provisions about how the two governments would go about addressing the Kashmir issue. As a result, Kashmir remained quiet for the next decade and a half.

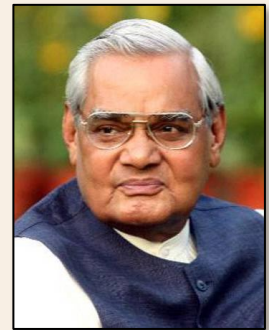
The other profound, long-term impact from the 1971 conflict and the defeat that India inflicted on the Pakistani Army, was Pakistan's decision to create a nuclear arms program for the expressed purpose of deterring India from waging another even more consequential war against the Pakistani nation. This program officially got underway in January of 1972, and its realization, along with India's subsequent development of its own nuclear weapons, would significantly alter relations

between the two nations and how the international community viewed and dealt with the new South Asia realities that these programs produced.

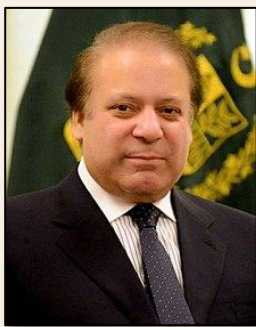
Expressing frustration over a lack of recognizable progress, a renewed Kashmiri nationalism escalated into an insurgency. In 1987, opposition groups claiming the elections for the Jammu and Kashmir Legislative Assembly were rigged, began to form militant groups. During the next year there were several protests and attacks on the Indian government. Islamist militant organizations – such as Lashkar-e-Taiba (LeT), formed in 1990 and connected to Pakistani intelligence – established bases of operations in Jammu and Kashmir and conducted terrorist attacks in India and in the Indian-administered areas of Kashmir.

Throughout the mid-1970 to mid-1990 period, both Pakistan and India pursued the development of their nuclear weapon programs, but neither program garnered much public or international attention until mid-1998, when India conducted its first two nuclear tests (on 11 and 13 May). Given India's actions, the Pakistani government decided to respond in kind, conducting tests on six uranium fission devices on 28 and 30 May. With the realization of India's nuclear capability, Pakistan now assumed a 'first use' policy against Indian forces found in violation of Pakistan's territorial integrity (meaning only against Indian forces within Pakistan itself).

Despite these setbacks, in October both sides launched what was called a "composite and integrate" process to help open communication across the LoC. This process almost immediately foundered, however, leaving nothing more than an agreement to resume bus service across the divide. With the service scheduled to commence a few months later in February of 1999, Indian Prime Minister Vajpayee declared his intention to travel to Lahore Pakistan for the inaugural run. This visit was a first for an Indian prime minister, and it was viewed as an unexpected and substantive initiative – according to Vajpayee, "a defining moment in South Asian history." As a result of this initiative, three formal documents emerged (see the Lahore Declaration) that envisioned improved relations in this nuclear age and enumerated specific nuclear confidence building measures between the two nations.



Atal Bihari
Vajpayee



Nawaz Sharif

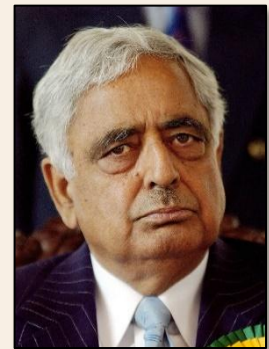
As had become the norm in their bilateral relations, this progress on the diplomatic front by Pakistan's political leaders engendered a destructive reaction from the Pakistani military. On the heels of the Lahore agreement, Pakistani forces and militants crossed into the Indian side of the LoC near Kargil in December, an action not discovered by Indian forces until May once the weather became conducive to the resumption of patrols in the region. The resulting Kargil War lasted two months, with Indian forces successful in driving the bulk of Pakistani forces back across the LoC.

US diplomatic intervention was a key ingredient in winding up this conflict. President Bill Clinton telephoned the Indian prime minister twice during the fighting. And when Pakistan Prime Minister Nawaz Sharif traveled to China to gain diplomatic support for a ceasefire that would keep his troops on the Indian side of the line, he came away empty-handed. On 4 July, after a day of intensive talks with Clinton, Sharif agreed to withdraw his remaining forces in return for a promise of "personal efforts" toward a settlement "once the sanctity of the LoC was restored."

Political Developments in Jammu and Kashmir

Following Partition, different governments came into power in the Indian state of Jammu and Kashmir with each subsequent election. Nationalist Indian parties, such as the Indian National Congress (INC) and the Bharatiya Janata Party (BJP) were active in Jammu and Kashmir state politics, but Kashmiris were suspicious and resentful of these major, 'outsider' parties. The INC, as noted, long predated the Republic and was closely linked to the independence movement. The BJP was the main opposition and had ties to several Hindu fundamentalist groups who advocated a return to a purely Hindu India. The Jammu and Kashmir National Conference (JKNC), the state's first political party, had consistently strong showings in legislative elections, though several of these elections were thought to be rigged. The leader of the JKNC, Sheikh Abdullah, alternated between having a working relationship with the national leadership and being thrown in jail for subversion. The party's rivals, meanwhile, accused it of being a puppet of the Indian government. The party remained a powerhouse even as it grew weaker after Sheikh Abdullah died, with the torch passed first to his son Farooq, then to his grandson Omar.

The Jammu and Kashmir Peoples' Democratic Party (PDP), headed by Mufti Muhammad Sayeed, is an ethnic Kashmiri party advocating self-rule for Jammu and Kashmir. It has called for the free movement of goods within the borders of Jammu and Kashmir as well as across the LoC. According to PDP literature, this action would, in essence, render all borders around the valley "irrelevant." Also essential to this goal was complete economic autonomy with self-authority over water and other resources within the Kashmir Valley. The PDP has called for a demilitarization of civilian areas and integration across the LoC. However, the party has been seen as somewhat ineffective due to the lack of progress on these goals and its relatively poor relations with the greater governments of both Pakistan and India. The PDP nevertheless won state elections and ran the state government on several occasions starting in 2002; like the National Conference, the PDP made alliances with Indian national parties. Mufti's daughter, Mehbooba Mufti, eventually emerged as her father's successor upon his death in 2016.



Mufti Mohammad Sayeed

Excluded from electoral politics because of its advocacy of full independence, the Jammu Kashmir Liberation Front (JKLF) started out as a militant organization that embraced the cause of an independent Kashmir. This is a solution that many Kashmiris privately long for, but that both India and Pakistan reject out of hand. For India, it means undoing the accession and acknowledging the legitimacy of dividing India by religion, both of which were anathema to the multi-religious ethos that had dominated India since independence. For Pakistan, independence for Kashmir meant giving up their claims based on the primary religion of the region's inhabitants, which the Pakistan Army and many Pakistanis saw as dishonorable.



Yasin Malik

In the mid-1990s, the JKLF split in two: one faction in Indian-administered Kashmir under Yasin Malik, and one in Pakistani Kashmir under Amanullah Khan. The Indian faction renounced violence and worked to rally people behind the cause of independence, while the Pakistani faction refused to sever ties with more violent elements within the party. The more peaceful Indian JKLF became politically active, though it was never willing to run candidates for election and continued to be regarded as dangerous subversives by the Indian government because of its continued interest in independence. Its leader, Yasin Malik, was repeatedly jailed.



Amanullah Khan

The JKLF wing based in Azad Kashmir continued to operate as a militant group willing to use violence in its quest for independence. The Indian government connected some of its members, including Amunallah Khan, to the 2001 attack on the Indian Parliament. Blaming other non-Kashmiri militant groups in the region for the lack of progress, Amanullah Khan seized on an opportunity in 2005 when Malik was allowed to visit Pakistan. Khan and Malik attempted to unify the two factions under a new leader, Farooq Siddiqi, but failed. Again, some of the intra-party disputes were whether to use violent tactics and whether the solution to the Kashmir issue should be regional or

involve international actors. Later that same year, Yasin Malik met with the Indian prime minister. This angered some of the JKLF senior leadership based in Indian-administered Jammu and Kashmir, who accused him of softening his stance towards India, and several of them left the party to join the hardline Siddiqi.

In 1993, the JKLF and some 25 other Kashmiri political, social and religious organizations in Kashmir came together to form the All Parties Hurriyat Conference (APHC). However, this conference was beset by internal rivalries and lacked the credibility and stability to serve as a serious interlocutor in a peace dialogue with either India or Pakistan.

China in Jammu and Kashmir

The border between China and India has also been heavily contested, though most of the disputed areas are unrelated to Kashmir. The McMahon Line (see Figure 3 on page 23), named after the British-run Indian government's foreign secretary and established in 1913, demarcated British India's borders. After 1947, the newly independent India adopted the line as its own border. The People's Republic of China, which came into power in 1949, never accepted the border, regarding it as an illegal British imposition. In 1959, tensions from the Tibetan revolt against Beijing spilled over into Sino-Indian relations after Indian opposition parties supported Tibet and the Dalai Lama. In 1962, after years of tacit Sino-Indian disagreement on border issues, India discovered new Chinese roads and posts within Aksai Chin, including a major highway connecting Xinjiang Province to western Tibet. In October 1962, in what became known as the Sino-Indian Border Conflict, Beijing sent forces into the northeastern border area and easily defeated the Indian military in a month-long conflict in Aksai Chin and Arunachal Pradesh. Ever since the establishment of a ceasefire in November 1962 China has retained de facto control of Aksai Chin, and India retains control over Arunachal Pradesh in the easternmost portion of the Sino-Indian border area.

Territorial disputes between China and India remain an issue. China and Pakistan, in contrast, settled their border dispute with the Sino-Pakistan Agreement of 1963. China recognized Pakistan's sovereignty over Azad Kashmir and most of the Northern Areas, while Pakistan ceded some adjacent areas to China. This agreement also established the Shaksam Valley, or the Trans-Karakoram Tract, as Chinese territory. India took strong exception to this agreement, holding that Pakistan had ceded Indian territory to China.

Pathways Toward Peace

In October 1999, the Pakistani government was deposed in a military coup d'état led by General Pervez Musharraf. During the Musharraf era in Pakistan, relations with India, especially over Jammu-Kashmir, gradually improved, with some promising initiatives given serious consideration. This warming of relations began in earnest in 2003, when then Indian Prime Minister Vajpayee offered "a hand of friendship" to Pakistan. This quickly led to a normalization of relations and improved transportation links between the two nations. Eventually Pakistan acceded to the Indian demand that cross-border



Pervez Musharraf

infiltrations cease before substantive talks could begin. In 2002 Pakistan declared a unilateral ceasefire along the LoC and stated their desire to establish cross-LoC bus service – between Srinagar in the Vale of Kashmir and Muzaffarabad, the capital of Azad Kashmir; the first in 50 years (it was finally launched in 2005). A breakthrough came in January 2004, when Musharraf and Vajpayee agreed that Pakistan would end terrorism and committed both nations to sustained dialogue toward “a permanent settlement of all bilateral issues, including Jammu and Kashmir, to the satisfaction of both sides.”

As time and talks went on, a number of confidence building measures were put into place that increased people-to-people contacts and greatly expanded bilateral trade. Neither the unexpected defeat of the Vajpayee government by a coalition lead by Manmohan Singh in early 2004, nor the terrorist attacks within India that occurred during that time, significantly interrupted or setback the ongoing negotiations. In fact, President Musharraf paid a three-day visit to the new Indian Prime Minister in New Delhi in April 2005, with both declaring the peace process irreversible. Overall, the talks centered on a softening of the LoC without changing it and increasing autonomy for regions of Jammu and Kashmir without either nation ceding territory. Also, New Delhi’s negative attitude toward moderate Kashmiri separatists – like the APHC – began to soften, and the APHC was allowed to meet with Musharraf, travel to Azad Kashmir, and met with Indian Prime Minister Singh.



Manmohan Singh

As time went on, President Musharraf often sought to work outside the established lines of protocol to offer his own “food for thought” proposals, such as possibly abandoning the long-standing Pakistani demand for a plebiscite if India would no longer insist that the LoC remain the de facto border. He floated the idea that Kashmir could be divided into seven “self-governing” regions based on culture and demographics that could be gradually demilitarized and held discussions on differing methods of control/governance – UN, India, Pakistan, joint or independent. He also offered that borders should be increasingly softened until they became virtually irrelevant.

For his part, Prime Minister Singh noted that he was open to fresh ideas but would not redraw the border or consider repartition along communal lines. Also, he saw demilitarization as impossible in the face of Pakistani supported cross-border infiltrations into the Indian controlled sector. In 2006, in part due to concerns that India was seen as stonewalling, he did offer Islamabad a treaty of peace, security and friendship, which Musharraf rejected as it would not be part of an overall Kashmiri settlement. Simultaneously, Singh stated that he could see a situation, “where the two parts of Jammu and Kashmir can...work out cooperative, consultative mechanisms so as to maximize the gains of cooperation in solving problems of social and economic development of the region.”

In December of 2006, Musharraf made his last substantive proposal. The four-point initiative offered that:

- The LoC would remain fixed, but people would be allowed to move freely across it
- That areas on each side would be allowed “self-governance or autonomy,” but not independence
- A phased troop withdrawal with joint supervision by an India-Pakistan-Kashmir tripartite mechanism
- Pakistani willingness to withdraw the dispute from the UN if talks showed substantive progress

At first cool, in time New Delhi warmed to this new initiative as it seemed the differences on positions were narrowing. Also, it became increasingly clear to Indian leaders that Musharraf was their best hope of finding a peaceful solution. However, in the end nothing much came of these efforts, as Musharraf was increasingly distracted by internal challenges and internal violence. Musharraf was finally forced from office in 2008 and is currently in exile while facing execution in Pakistan after being convicted in absentia of treason for his role in the coup that brought him to power. While the subsequent Pakistani government, led by Asif Ali Zardari, did adopt constructive positions on Kashmir, these fell well short of those previously offered by Musharraf. Without Musharraf's initiatives, the Singh government, like those before him, saw no urgency in offering plans of their own. And so, in the end both governments lacked the political strength and will to take a proposed peace settlement into the rough and tumble of their political process. And then, in November 2008, came the Pakistani terrorist attack on Mumbai; ten gunmen held several high-profile tourist sites and hundreds of hostages for three days, ultimately killing over 170 Indians and foreigners. While conventional military conflict was avoided, all talks on Kashmir were frozen and any remaining energy on that subject quickly drained away.



Asif Ali Zardari

Developments in the Past 15 Years

In the years after the 2008 Mumbai terrorist attacks, in which Pakistani-backed terrorists struck at the heart of India, there were several periods of unsettled security inside Kashmir. Consequently, Indian security measures in the region became even more stringent and restrictive. In November 2011, riots in Jammu and Kashmir broke out after the Indian Army falsely claimed that three militants were killed – militants who were later shown to be civilians who had been lured into a trap. This rioting pitted young, educated, stone-throwing Kashmiris against military and paramilitary troops. It brought about the reinstitution of a statewide curfew and more Indian security patrols in the Kashmir Valley, which in turn only fueled more rebellion. While Indian crackdowns were initially focused on the Kashmir Valley, and only during specific times of the year, such as the Muslim holy month of Ramadan, over time more repressive security measures became the daily norm. The cycle of crackdown and civil unrest demanded increased Indian military attention as well as financial assistance to make up for the economic losses due to the disorder. Over the years, these episodes occasionally resulted in casualties, and many in the region were personally affected by the violence.



Narendra Modi

In 2013, after years of fractious governance under Pervez Musharraf and roiled by the assassination of Benazir Bhutto, the Pakistan Muslim League – the country's largest political party – won the national election and the party president, Mian Muhammad Nawaz Sharif, was appointed the 18th Prime Minister of Pakistan. The following year, the BJP (Hindu Nationalist Party) won the Indian national elections, and Narendra Modi succeeded Manmohan Singh as Prime Minister.

By 2014, the APHC (a coalition of Jammu and Kashmir political parties) had split into three factions. The cause of self-determination, which was the original goal of the conference, had become a point of contention between factions, as had the question of whether violence was an acceptable means. This fracturing allowed the PDP to gain strength, sufficiently so to enter a coalition, albeit tenuous, with the BJP in the administration of Indian Jammu and Kashmir.



Mehbooba Mufti

However, on January 7, 2016, the head of the PDP and Jammu and Kashmir's Chief Minister, Mufti Mohammad Sayeed, passed away. One of India's best known Muslim political leaders, Mufti Sayeed's death came just as his party was assuming a true leadership role in the region. Under his leadership, and that of his daughter Mehbooba Mufti, the PDP had gained increased popularity due to its promise to bring a "healing touch" to the problems that plague Jammu and Kashmir. As expected at the end of the official period of mourning, Mehbooba Mufti accepted her father's former positions making her the first female Chief Minister of Jammu and Kashmir. She served in that role until the BJP left the coalition in 2018, causing the fall of her government.

On July 9, 2016, Burhan Muzaffar Wani, a commander of the Hizbul Mujahadeen, a small militant group located in south Kashmir, was killed during a gun battle with Indian security forces. Word of his death, which was interpreted as an "extra-judicial execution" within the Muslim community, spread rapidly on social media and spurred huge demonstrations that rapidly descended into the worst violence since 2010. More than 70 people were killed and thousands injured. The Indian military locked down most of Kashmir, but strikes, protests and demonstrations continued.

The situation escalated when, on Sunday, September 18th, an Indian Army base near Uri, a town across the LoC from Azad Kashmir, was attacked by heavily armed militants. The attack cost the lives of 18 Indian soldiers, and India quickly put the blame on Pakistan, directly blaming the Pakistan-based militant group. The Pakistani government countered that "India is trying to hide its crimes against humanity in occupied Kashmir," as just the week before India had refused to allow a Kashmiri activist to leave the country to speak at a session of the United Nations Human Rights Council in Vienna. The war of words continued for several weeks, but despite initial fears and speculation, India did not mount a military response.

In mid-2017, India's focus suddenly shifted from Jammu and Kashmir to a face-off with Chinese forces on the Doklam plateau, located near the intersection of the borders of India, China and the nation of Bhutan. Part of the larger Doklam region, this area is ostensibly located inside China but is patrolled by all three nations. Indian forces had determined that the Chinese were preparing to resurface a dirt track along the plateau and moved their forces onto the plateau to confront Chinese forces. India, which has lost each of several military confrontations with the Chinese, feared that Beijing was building up its military capabilities and transportation routes in that region to threaten the northeastern region of the Indian state, a significant portion of which has long been disputed by China. Moving forces through the Doklam region south into India – across the "Chicken's Neck" – would be the easiest way for China to cut off India's eastern provinces. This incident, which was resolved after a few tense weeks, speaks to New Delhi's paranoia concerning what they believe are Beijing's real intentions regarding the continued integrity and viability of the Indian state.

On August 27, 2017, after a yearlong investigation into revelations disclosed in the "Panama Papers," the Pakistani Supreme Court disqualified Prime Minister Sharif from holding office, forcing him to resign. Three days later Shahid Khaqan Abbasi, a senior member of the ruling Pakistani Muslim League (PML) party, was sworn in as the interim Prime Minister; he held the office until national elections were held in mid-2018. A warrant was issued for Sharif's arrest on corruption charges later that October.

In the 2018 parliamentary election held in the wake of this scandal, the centrist Pakistan Movement for Justice (Pakistan Tehreek-e-Insaf (PTI)) party won the largest number of seats and thus defeated the ruling PML, bringing the charismatic former national cricket team captain Imran Khan to the premiership. Khan is on record as viewing Jammu and Kashmir strictly as a humanitarian issue, as opposed to a territorial dispute between two countries. He has proposed secret talks to settle the issue as he thinks vested interests on both sides would otherwise try to subvert them. He seems to have ruled out a military solution to the conflict and denied the possibility of a fourth war between India and Pakistan over the disputed region.



Imran Khan

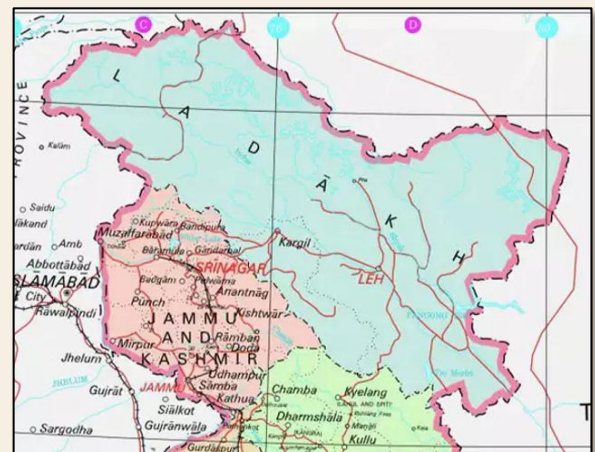
Yet in February 2019 the opposing armies did indeed again clash. Responding to a suicide bombing in Kashmir, which they blamed on Pakistan-backed terrorists Jaish-e-Mohammed, the Indian Air Force bombed military targets within Pakistan proper. In this action, an Indian jet was shot down and the pilots captured. Both sides quickly sought to de-escalate the conflict, and the pilots were returned safely within a few days. There has since been sporadic artillery shelling across the LoC but otherwise the military situation would have otherwise returned to the status quo.

India changes the political calculus

Suddenly and somewhat unexpectedly, the Indian parliament on August 5, 2019, revoked Article 370, which had guaranteed Jammu and Kashmir's autonomous political status since 1954. Together with this action, India invoked Article 356 by which the Indian president assumed extraordinary powers over local governance. This was followed by the Jammu and Kashmir Reorganisation Act, 2019, to reconstitute Indian administration of the region.

Telephone and internet connections to the outside world were cut, and opposition political leaders – to include former Chief Minister and PDP leader Mehbooba Mufti – were detained. Just prior to her confinement, Mufti publicly proclaimed that “The Fifth of August is the blackest day of Indian democracy – when its parliament, like thieves, snatched away everything from the people of Jammu and Kashmir.”

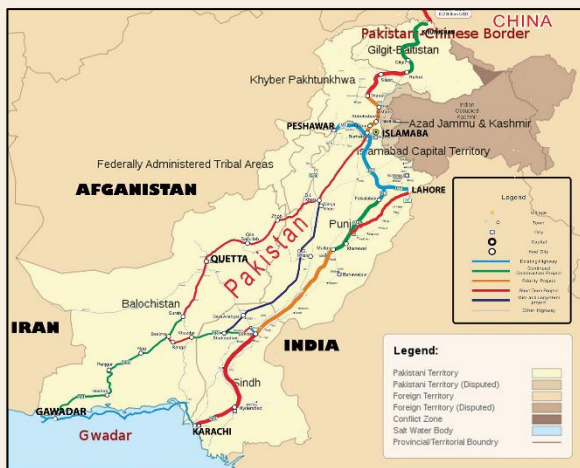
Within the resulting electronic and political silence, the Indian government worked to consolidate its position. Already having well-integrated the Jammu and Kashmiri economy with that of the rest of the country, the Indian government began offering incentives and plans with a view to making the local economy “the strongest in the country in 5-7 years”. They also held out the lure of an eventual return of autonomy: Home Minister Amit Shah stated on October 7th that “Jammu and Kashmir won't remain union territory (*i.e.*, a state of India) forever.” The loss of special status also opened the prospect of property ownership within Jammu and Kashmir to all Indians, not just locals – a situation that warned of the potential for mass immigration of Hindus to drastically change the demographic makeup of the region. In a move to further fracture the political unity of the Jammu and Kashmiri people, on November 1st India formally split the former princely state into two separate federal administrative states of Ladakh, and Jammu and Kashmir – the latter of



2019 Union Territories of Ladakh and Jammu and Kashmir

which included, on its official maps at least, the area of Azad Kashmir, which is currently controlled by Pakistan. A Lieutenant Governor of Jammu and Kashmir position was established to head the union territory and held by an Indian politician.

With opposition political parties in disarray and thus confident of victory, the BJP offered a full slate of candidates for the pending October 23rd Legislative Assembly elections, seeking pure political alignment with the ruling national party. Although they were running virtually unopposed, due to boycotts by most major opposition parties, the BJP was resoundingly defeated by a mix of minor opposition party and independent candidates – a significant local rebuke of the recent actions of Narendra Modi's national government. Nevertheless, the stringent policies of the Indians seemed to be having the intended effect – the Director General of Police in Jammu and Kashmir, Dilbag Singh, reported that, as of the end of the calendar year, there had been a 30% decline in 'terrorist activities' since the crackdown.



China-Pakistan Economic Corridor

In response to these blatant and heavy-handed initiatives on the part of India, Pakistan sought to internationalize the issue. Khan met on October 1st with Chinese President Xi Jinping in Beijing, where Xi assured him, that China would support Pakistan on its "core interests", especially regarding the China-Pakistan Economic Corridor (CPEC), a key element of China's Belt and Road initiative. Khan was less successful in bringing increased international attention to the Kashmir problem. Xi urged him instead to seek direct talks with India while also seeking to "enhance dialogue and consultation on the issue." It was a relatively guarded response, and not what Khan had hoped for.

China, meanwhile, continued to walk a fine line on the issue. Responding to a request by Pakistan, the Chinese delegation to the United Nations, on December 12th, formally asked to discuss the issue in the Security Council – only to withdraw its request a few days later. The Organization of Islamic Cooperation (OIC) was likewise unmoved, with Saudi Arabia rejecting a Pakistani request to put Jammu and Kashmir onto the OIC Foreign Minister meeting agenda in February.

Despite its lack of strong public support on behalf of Pakistan, internally China viewed India's political actions, within Jammu and Kashmir, with great alarm. Beijing sensed that the consolidation of Indian power in the former princely state would threaten China's position in the disputed territory of Aksai Chin and thereby disrupt a key portion of the strategic "Belt and Road" trade and transport initiative.

In January 2020 China led a push for international intervention in Jammu and Kashmir. Russia's permanent representative to the UN publicly pushed back on closed door consultations happening in the UNSC. Russia stated that they "firmly stand for the normalization of relations between India and Pakistan and that they hope the differences between them will be settled through bilateral efforts."

Having been under house detention since August, former Chief Ministers Farooq Abdullah and Mehbooba Mufti were both officially arrested on February 8, 2020, under the provisions of the Jammu and Kashmir Public Safety Act (PSA). Ironically, the PSA had been implemented in 1978 under Abdullah's father's tenure as Chief Minister to deal with public unrest against a timber cartel

but was later used by him to silence political rivals. Under the Act, people can be held without a warrant, trial, or court hearing for a maximum of two years. Less than one month later Farooq's son Omar (himself also a former Chief Minister) was likewise detained via the PSA – ostensibly for 'past conduct' but certainly immediately after he attempted to challenge in Indian court the revocation of Article 370.

Just days after Omar Abdullah's arrest, India began to ease previous restrictions on the general populace in Jammu and Kashmir. The ban on access to social media was lifted, but only at second-generation (2G) speeds and with measures in place to deter the use of encrypted files, videos, and the uploading of photos. Concurrent with this general easing, access to virtual private networks (VPNs) was blocked, the Indian government having claimed their "misuse by anti-national elements" during the digital quarantine.

March 13th and 24th Farooq Abdullah and Omar Abdullah are released from detention while Mufti remained under arrest. Later in March the Indian parliament passed new "Domicile Rules" legislation, to the Reorganisation Act, that removed protections for those residing in Jammu and Kashmir. Under these new laws domiciles would be given jobs in the state. Among the various criteria under the modified law anybody who has "resided for a period of fifteen years in the Union territory of Jammu and Kashmir" or migrants registered by the Relief and Rehabilitation Commissioner of the union territory would be eligible for a domicile.

After opposition by several political parties a fresh order was issued on April 3. Among the changes were providing protection to domiciles in any government post as compared to only selected posts before. Finally in May a second order was passed to modify this portion to include "all level of jobs" in the union territory. Criticism of the domicile rules compare them to "post-colonial colonialism" and that they reinforce settler colonialism in the region.

In a counter to India's growing militarization of Jammu and Kashmir, the People's Liberation Army reinforced its positions in Aksai Chin along the Ladakh line of control. In June tensions grew until – technically still adhering to a 'ceasefire' agreement in place since 1962 – Chinese troops attacked and killed almost two dozen Indian soldiers with clubs and rocks in the Galwan River Valley. Both sides have since heavily reinforced their positions along this LoC, with only the winter weather providing a respite of tensions in the steep, nearly impassable terrain.

Mufti was released on October 13, 2020, only to be placed on house arrest November 25, 2020. Mufti was detained when attempting to visit the family of senior PDP leader Waheed Parra in South Kashmir's Pulwama district.

A third order was issued October 26 that modified land laws which now allows those from other Indian states to buy land in the union territory. This raised concerns that the government was attempting to change the ethno-religious composition of the Muslim-majority territory.

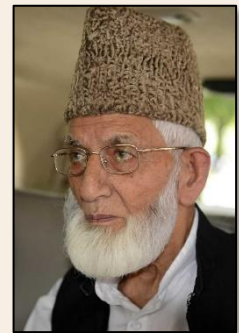


Chinese-Indian Disputed Territories

Internet access and freedom of assembly remained restricted during the rest of the year in the wake of the region's 2019 political reorganization. However, 4G internet service was largely restored to the region in February 2021. India and Pakistan agreed to a ceasefire along the LoC in February.

Indian officials signaled in June that statehood for Jammu and Kashmir would be restored. Elections for a new legislature would be held following the redrawing of constituency boundaries. However, no specific timetable was announced.

Veteran separatist leader Syed Ali Shah Geelani died on September 1st in his residence. His son alleged that police raided his house and forcibly took his corpse and buried it in the middle of the night with no close family witnessing the burial. The director of the Jammu and Kashmir Police denied the allegations. Travel and internet restrictions were quickly imposed to minimize uprisings from occurring.



Syed Ali Shah
Geelani

In October, a new wave of militant attacks against members of minority religious communities in the region, and against migrant workers, caused many to flee. Security forces responded to the surge in militant violence by briefly detaining hundreds of civilians; the increase in violence caused by both militants and security forces resulted in the deaths of at least 33 people in under three weeks.

Increased political activity picked up near the end of the year with many rallies being held. The PDP attempted to capitalize on the uptick but failed to get permission from authorities most of the time. The easing of curbs on political activities was viewed as the government's realization that it cannot hold down dissent by force for too long.



Fahad Shah

February 2022 Fahad Shah, editor in chief of the Kashmir Walla is charged with sedition for publishing a report about a gunfight. Four other charges were filed under the Unlawful Activities Prevention Act (UAPA). Shah is one of four Kashmiri journalists charged under UAPA. The Walla is subsequently shut down and its website is no longer accessible. This is the first time the government has completely shut down an entire newspaper.

February 23rd Pakistan Prime Minister Khan visits Moscow. Khan's visit occurred just hours before Russian military operations in Donbas were executed. Pakistan defended the meeting as being planned months in advance and that Pakistan was not interested in joining any blocs and welcomed neutrality.

According to a March 7th leaked classified cypher, the US State Department encouraged the Pakistani government to remove Khan because of his neutrality. On March 8th opposition parties submitted a motion of no confidence against Khan. Prime Minister Khan claimed that it was a coup attempt. April 10th Khan was ousted from office.

Indian Prime Minister Modi visited Jammu in April 2022, repeating his earlier promises to deliver economic investment and development to the region.

The Kashmir electoral map was redrawn following a delimitation exercise in May. Though the total number of legislative seats increased from 83 to 90 only one additional seat was gained by Kashmir. The Hindu-majority Jammu was raised from 37 to 43. Critics highlighted this move "watered down" the average population of an assembly constituency in the more populous Muslim-majority Kashmir.

In the redrawing, seats that had typically earned victories by the PDP and National Conference were wiped off the map.

In a series of incidents in April, May, and June, militants attacked members of non-Muslim religious communities, causing hundreds of families to flee. Others who wished to leave Jammu and Kashmir were reportedly prevented from doing so by the government.

Police tracking of militant organization recruitment indicated a reduction from 2021 with only 109 people recruited, down from 155. Of the 109 militants recruited police list 86 as killed and 23 remaining at large. Overall, 2022 saw 180 militants killed with 56 of them of foreign origin.



Rishi Sunak

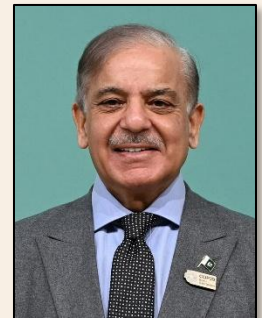
The United Kingdom elected its first British Asian Prime Minister Rishi Sunak. Sunak assumed office on October 25th, 2022. Sunak's parents are of Indian descent with his paternal grandfather from Gujranwala (in present-day Pakistan). His election offered a glimmer of hope that his administration would act on Kashmir.

China boycotted the G20 tourism meeting held in Srinagar, Kashmir in May 2023. Both China and Pakistan condemned India for holding the event in the disputed Kashmir region. India increased security at the venue to ensure no acts of violence occur to visiting participants.

India hosted the G20 summit in New Delhi in September. China sent a delegation to the summit, but President Xi decided not to attend. Xi's boycott was speculated on the ongoing border dispute between China and India. Russian President Putin also did not attend. Russia stated that Putin wouldn't attend due to Ukraine being one of the topics to be discussed at the summit.

The spring of 2024 saw Shehbaz Sharif elected Prime Minister of Pakistan and Narendra Modi securing a third term as Prime Minister of India. In October, China and India came to an agreement concerning patrolling along their shared border, a significant step towards de-escalation between the two.

Meanwhile, 2025 was the most significant year in decades for the region. India and Pakistan had a brief open conflict following a terrorist attack in Jammu – putting the region on ever closer sustained war between the two nuclear powers. At the same time, India and China continued apparent progress towards de-escalation along the Line of Actual Control.



Shehbaz Sharif

As 2025 closes out, the region of Jammu and Kashmir is filled with tension, freedoms remain curtailed for locals, and there is an overall sense that renewed open conflict between India and Pakistan may be simmering below the surface waiting for the trigger to manifest. If a political solution is not worked out the peoples of this region do not see a positive future.

Recent Significant Events

(*Notional)

2023

July 27: Pakistan summoned the US embassy's deputy chief of mission to express concerns over President Biden and Prime Minister Modi's recent statement calling on Pakistan to ensure its territory is not used as a base for attacks by armed groups.

August 31: Kashmiri groups filed a petition to the Indian Supreme Court to restore Article 370 and Jammu and Kashmir autonomy.

September 23: Indian authorities released a top cleric, Mirwaiz Umar Farooq, who had been held for more than four years. Farooq is considered a separatist leader. Following his release, he conducted prayers at the historic Jamia Masjid mosque in Srinagar.

October 14: The cricket world cup match between India and Pakistan takes place in Ahmedabad, India. Kashmiri locals feared showing support for the Pakistani team as Indian authorities monitor social media and have taken legal action against individuals under the Unlawful Activities Prevention Act in the past.

November 23: Kashmiri journalist Fahad Shah is released from jail after 600 days in confinement. Shah is the owner and editor of Kashmir Walla, a publication banned earlier in 2023.

December 11: India's Supreme Court upheld Prime Minister Modi's 2019 decision to revoke special status for Jammu and Kashmir. The ruling stated that Jammu and Kashmir should be restored to the same statehood as any other Indian state with no separate autonomy rights "at the earliest and as soon as possible."

December 18: Seven back-to-back earthquakes, one with a magnitude 5.5, occurred in Zaskar, Kargil and felt across Ladakh and Jammu and Kashmir. Multiple aftershocks rattled the area.

2024

February 8: Pakistan holds general election to select members of the 16th National Assembly. The Prime Minister's race is heated due to two former Prime Ministers and a former Foreign Minister in the running. Former Prime Minister Imran Khan's party, the Pakistan Tehreek-e-Insaf (PTI) wins a plurality of seats with the other two dynastic parties, the Pakistan Muslim League party (PML-N) and Pakistan People's Party (PPP) coming in second and third. The PML-N and PPP form a coalition government with Shehbaz Sharif being elected Prime Minister.

June 4: Indian Prime Minister Modi secured a third term after the conclusion of Parliamentary elections. However, for the first time since coming to power in 2014, the BJP must rely upon coalition allies as it did not secure a majority on its own, winning 240 seats of the required 272.

June 9: Militants attack a bus of Hindu pilgrims in Reasi district of Jammu-Kashmir killing 9 and injuring 41. Some in Indian media attribute the attack to the Resistance Front (TRF) militant group, which is said to be an offshoot of Pakistan-based (LeT). This occurred on the day of Prime Minister Modi's swearing-in for a new term.

October 21: After rounds of diplomatic and military talks, India and China reach an agreement on patrolling their shared border along the Line of Actual Control (LAC). News of agreement came on the eve of a BRICS Regional Grouping summit in Russia.

2025

April 22: Militants attack the resort town of Pahalgam killing 26 people, primarily tourists. India blames Pakistan for the attack, to which Pakistan denies any involvement.

April 23 – 24: India suspends participation in the Indus Waters Treaty, declares Pakistan's Defense advisors persona non grata, reduces its diplomatic staff in Islamabad, closes its only operational land border crossing with Pakistan, and stops issuing visas to Pakistani nationals. Pakistan retaliates by threatening to withdraw from bilateral agreements (including the Simla Agreement), closing its airspace to Indian carriers, canceling visas for most Indian nationals (not including Sikh pilgrims), and halting trade with India.

April 25 – May 6: India and Pakistan troops exchange gunfire along the Line of Control on multiple occasions. Pakistan claims that India is on the verge of conducting a military operation.

May 7 – 10: India launches Operation Sindoor targeting "terrorist infrastructure" across Pakistan allegedly linked to the April 22 terrorist attack in Kashmir. Over the course of several days, India and Pakistan exchange missile and drone strikes across their de facto border, which included the targeting military installations and air bases. In the early evening of May 10, both sides had agreed to a ceasefire.

July 19: China begins construction of the world's largest hydroelectric dam along Yarlung Tsangpo river in Tibet. India raises concerns that the dam could divert water away from them.

August 19: India and China agree to resume direct flights and increase trade and investment at the conclusion of a 2-day visit by Chinese Foreign Minister Wang Yi to New Delhi.

August 31: Indian Prime Minister Modi attends the annual meeting of the Shanghai Cooperation Organization's Heads of Government Council, marking Modi's first visit to China since June 2018.

September 10*: The UN Security Council, citing UNSCR 2900, authorizes the UN Secretary-General to convene a multilateral peace conference regarding the ongoing conflict within, and the future of the territory and governance of, the old Princely State of Jammu and Kashmir, and sets a target date of 9 February 2024, in Vienna Austria.

October 17*: GENEVA – Delegations from the countries of China, India, and Pakistan are being joined by delegates from the nations of Russia, the United Kingdom and the United States, plus a delegation from Jammu-Kashmir, representing the peoples of that divided region, for formal talks mandated under UNSCR 2900 and facilitated by a UN Special Representative appointed by the Secretary-General.

Negotiation Chapters and Issues

Chapter I: Territory

Background

There are several distinct sub-regions within Jammu and Kashmir. The Kashmir Valley and Ladakh lie directly north of India and comprise the Indian-administered Union Territories of Jammu and Kashmir. These areas had traditionally been strongholds of support for the JKLF, but the PDP gained significant support in recent years. The Kashmir Valley is home to a large Muslim majority, most of whom are Kashmiri-speaking Sunnis. Ladakh contains large Buddhist and Muslim populations. The region of Jammu is more diverse. The Doda district is home to a significant Kashmiri-speaking Muslim population, while the districts of Rajour and Poonch, which border Azad Kashmir, have majority Muslim populations that speak a Punjabi dialect. The Pakistan-administered areas of Azad Kashmir and Gilgit-Baltistan (Northern Areas) lie to the west and north, respectively. Azad Kashmir has a significant Kashmiri population, though the people who have always lived in this area are considered a distinct subgroup, separate from Kashmiris from the Valley. Gilgit has a substantial Shia population; the other areas controlled by Pakistan are primarily Sunni. China administers the Shaksam Valley area of Gilgit-Baltistan. Pakistan and India have fought over the Siachen Glacier.

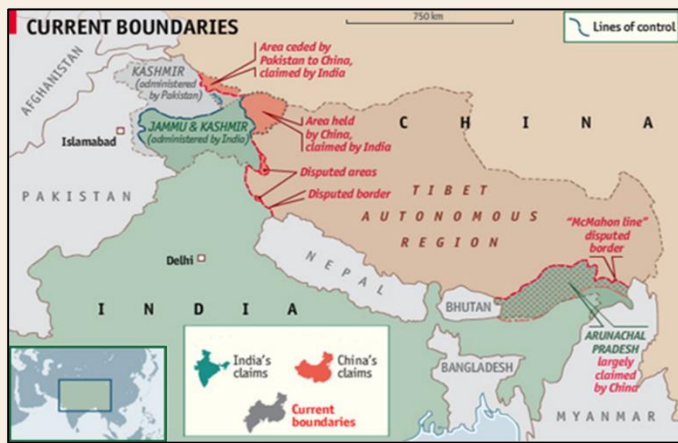


Administrative Districts

The Pakistan-administered areas of Azad Kashmir and Gilgit-Baltistan (Northern Areas) lie to the west and north, respectively. Azad Kashmir has a significant Kashmiri population, though the people who have always lived in this area are considered a distinct subgroup, separate from Kashmiris from the Valley. Gilgit has a substantial Shia population; the other areas controlled by Pakistan are primarily Sunni. China administers the Shaksam Valley area of Gilgit-Baltistan. Pakistan and India have fought over the Siachen Glacier.

India and China have a major border dispute. Only one small part of it is related to the Kashmir dispute: the area in and around the Shaksam Valley that Pakistan ceded to China in a border settlement in 1963. That area had been part of the princely state of Jammu and Kashmir, and accordingly India claims it. The rest of the Sino-Indian border dispute has never been dealt with as part of the Kashmir issue. China and India claim Aksai Chin, though China now controls it. The dispute over Aksai Chin can be traced to two contradicting border lines drawn by the British. The first border, drawn in 1865, included Aksai Chin as part of Kashmir; the second gave China control. Each country continues to favor the border that gave them the most territory. Aksai Chin is a virtually unpopulated area, arid and frozen for much of the year. Its only real interest is as a transit zone. Chinese road construction, in this area, sparked alarm in India in the 1950s.

The third significant part of the India-China border dispute is the area east of Bhutan held by India and organized as the state of Arunachal Pradesh. The conflicting claims to Arunachal Pradesh can also be traced to disputed border demarcations. The 1914 Simla Convention established the McMahon Line, which demarcated the frontiers of British India by separating the Indian state of Arunachal Pradesh from Tibet. When India became independent in 1947, the new government recognized the McMahon Line and adopted it as its own. The Chinese believed that the border demarcation was merely imposed by the British when the Chinese were powerless, and therefore the boundary was illegal. Tensions over Arunachal Pradesh were aggravated in the aftermath of the 1959 Tibetan revolt. The Dalai Lama fled to India, and the Indian government permitted him to take up



China-India Border Disputes

residence in an area not far from the border with Tibet. This is the most painful part of the India-China border dispute. It involves a populated area that is integrated into the political structure of India. More than any of the other disputed areas, it is actively challenged by China, which publicly contests Indian sovereignty there at every opportunity.

In the 1960s, China had hinted that it might be able to accept a settlement that basically froze the current de facto lines, with China retaining Aksai Chin and India keeping Arunachal Pradesh. China and India

established a formal dialogue on the border in 1976 and have intensified it at several points since then. Since the late 1980s, they have agreed that the border dispute should not be allowed to escalate or to contaminate the rest of their relationship. Talks have moved very slowly. Since the 1990s, however, China has rejected such an arrangement, arguing that China's increase in power since the 1960s made such a deal impossible.

Negotiation Issues

Current positions of the parties - Pakistan has consistently refused any suggestion that it give up any part of Azad Kashmir. Technically it holds that sovereignty over all of Kashmir must be decided by the UN-mandated plebiscite. India has consistently claimed all of Jammu and Kashmir as its rightful territory. The Jammu & Kashmiri delegation asserts that it represents all Kashmiri people and has sought to unite all Kashmiris, Indian and Pakistani; however, their reach has not extended to the Chinese Kashmiris. All three parties are constrained by the passionate views of key constituents – for Pakistan, both political leaders and the army; for India, the BJP's core constituency; and for the development of a moderate popular movement. In addition, India would have to obtain a constitutional amendment to accept any change in its current borders.

Division of Jammu and Kashmir - The original 1949 plebiscite proposed by the UN was limited to a choice between joining India or joining Pakistan. Later proposals added a third option – independence. However, both India and Pakistan are adamantly opposed to an independent Kashmir. Negotiations on territory will be closely linked to the basic decision on territorial sovereignty. One possible outcome is dividing the territory based on the status quo, making the LoC an international border. Another possibility would be independent or autonomous Jammu and Kashmir; the actors involved will have to agree on which territories will accede to the autonomous or newly independent state. Indian officials recently introduced another potential division when they threatened to break Jammu and Kashmir up into the three states Jammu, the Kashmir Valley and Ladakh. This position is not official Indian policy and has little international support.

The Boundary - The Line of Control has not changed for nearly 75 years. Many observers believe that if ever there is a settlement, it will establish a border that is very close to the LoC. Neither the Indian nor the Pakistani governments have taken up such a measure. In the 1960s, Pakistan suggested dividing Kashmir along the Chenab River. India has always rejected this proposal. The Kashmir Study Group, in 1999, suggested modest exchange of territory on either side of the Line of Control. Both India and Pakistan never accepted this suggestion.

Other Areas under Dispute - While the heart of the Kashmir problem is in the areas disputed between India and Pakistan, technically, the area ceded to China, by Pakistan in 1963, and those currently under dispute between India and China are also part of this issue set. In the past, the India-China border disputes have not been dealt with, in context of a comprehensive territorial solution. Chinese participation in this peace effort may indicate their willingness to consider an overarching deal that would resolve all the outstanding border disputes involving India, Pakistan, and China. This would include Aksai Chin and Arunachal Pradesh.

Chapter II: Jammu and Kashmir Governance

Negotiation Issues

What should the end-state be for Jammu and Kashmir; independence, autonomy, or local self-government? What is the relationship of parts retained by India and Pakistan, with the central governments of those two countries, and how it should be achieved? Casting a shadow over each of these options is India's recent rescission of Article 370. If New Delhi retains national control over local governance issues, any option is rendered moot. UN Secretary-General António Guterres called for the implementation of UN Security Council resolutions on Kashmir in 2020. These resolutions included holding of a plebiscite among Kashmir's residents on whether to join India or Pakistan. He further stated that the UNSC resolutions must be implemented since the preconditions for holding the plebiscite is that Pakistan must withdraw its troops from the occupied territory of Jammu and Kashmir.

Independence - While the JKLF has espoused the cause of independence, it has been rejected by India and Pakistan and has no international support. Russia has formally denounced the JKLF-led Assembly's declaration of independence. The United States has been careful not to explicitly condone the declaration but has expressed support for Kashmiri self-governance and the principle of self-determination (i.e. autonomy vice than independence). Territorial disputes complicate the issue of independence. The entire area is subject to conflicting claims by India and Pakistan. China also has claims to Aksai Chin. The Kashmir Assembly's declaration of independence encompasses all the former princely territories currently administered by India, Pakistan, and China. Any consensus on Kashmiri independence would require some form of security force that all parties can agree upon. The Jammu and Kashmir Police Department, under the Jammu and Kashmir Department of Home Affairs, has aligned with the JKLF. Pakistan and India each insist on exclusive rights to maintain security within Jammu and Kashmir.

Autonomy - To secure regional stability, negotiating states may prefer to come to an agreement on Kashmiri autonomy rather than full independence. This would require agreement on a border, so that the areas where autonomy was to be exercised, within India or within Pakistan, were clearly spelled out. It could also include provisions on trade, transit and communications between the two parts of Kashmir. It might also include the creation of joint institutions, involving people from the two sides, as has been proposed by the Pakistani government and by private individuals in several countries including India. The UN and US support for such an agreement could pressure regional actors to agree on governance stipulations in terms of troop withdrawal. The United Kingdom has gone further in their public support for full autonomy, not independence, under a democratically elected local government that can earn and retain the full support of all the Kashmiri ethnic groups, as well as India and Pakistan. General international opinion supports increased autonomy for the Kashmiri people because it would provide a more democratic voice of the people and help mitigate human rights violations.

Plebiscite - The original UN resolutions in 1948 authorized holding a plebiscite under the condition that Pakistan and India withdraw their troops from Jammu and Kashmir, leaving the minimum strength required to safeguard law and order. As neither Pakistan nor India have complied, the plebiscite has not occurred. The United Kingdom and the United States have called on the Security Council to revise the terms of the plebiscite to include an option for independence, claiming that this is the only alternative that would constitute true self-determination.

Jammu & Kashmiri leaders maintain they have widespread support throughout the entirety of historical Jammu and Kashmir, though the actual extent of their backing beyond the Kashmir Valley is unknown. Pakistan and India both support the original terms of UNSC Resolution 47 (1948), which includes only the two accession options on the ballot. Neither country has pressed for the plebiscite in recent years. Historically, India has obstructed all attempts at a plebiscite on the grounds that the security situation is untenable, though many Kashmiri and Pakistani officials have accused India of delaying the plebiscite because the results would not be in its favor. Pakistan has continued to advocate for the plebiscite, knowing that India would not allow it. This position allows Pakistan to be seen as visibly supporting Kashmiri self-determination, while ensuring the continuation of the status quo. Attempts at public polling have been blocked for decades, so there is no credible data to suggest how Kashmiris would vote in a plebiscite.

India can be expected to reject any form of plebiscite. The wider international community is more willing to question the applicability of the 70-year-old resolution, especially if revision will result in a peaceful settlement. India's proposal to divide Jammu and Kashmir into three states presents another alternative plebiscite option: holding separate referendums in each territory.

Any plan for implementation of the plebiscite, revised or not, must consider UNSC Resolution 47 (1948)'s requirement of troop withdrawal. Given the recent increasing instability, India's refusal to administer the plebiscite may be warranted. The Jammu & Kashmiri leaders have insisted that a ceasefire agreement would be sufficient to restore enough security for a free and fair plebiscite; neither India nor Pakistan has acknowledged this suggestion. UNMOGIP, created by UNSC Resolution 39 (1948), would be the ultimate authority to determine whether the security situation is adequate for the vote.

Chapter III: Human Rights and Displaced Persons

Background

The human toll of the dispute in Jammu and Kashmir has been high. Since partition, both sides have accused each other of human rights abuses, including extrajudicial killings, disappearances, torture, rape, and the use of child soldiers. Sectarian violence incited by pro-Pakistan fighters has led to allegations of ethnic cleansing of the Kashmiri Hindus. Human rights activists have uncovered mass graves in Jammu and Kashmir containing the remains of thousands of civilians believed to be victims of Indian-forced disappearances stemming from the violence in the 1990s.

Partition in 1947-1948 led to the widespread displacement of persons in Pakistan, India, and Jammu and Kashmir. As both states violently struggled to control territory, Hindus fled to India and Muslims to Pakistan. For those remaining within Jammu and Kashmir, the establishment of the UN Ceasefire Line of 1949 caused further internal displacement and the separation of families. Partition entrenched ethnic and religious identities, which laid the foundation for enduring tension in the region.

Cycles of violence since Partition have further exacerbated the humanitarian crisis. During the Indo-Pakistani Wars of 1965 and 1971, violence led to the displacement of millions of Kashmiri Muslims and Hindus. Targeting of civilians by Indian and Pakistani forces, as well as by insurgents, caused many civilians to seek refuge in bordering countries and in Jammu and Kashmir. Since 1990, over 250,000 people have been forcibly relocated due to this conflict. Kashmiri Islamic militant groups have consistently threatened the physical security of Kashmiri Hindus, forcing them to flee their homes.

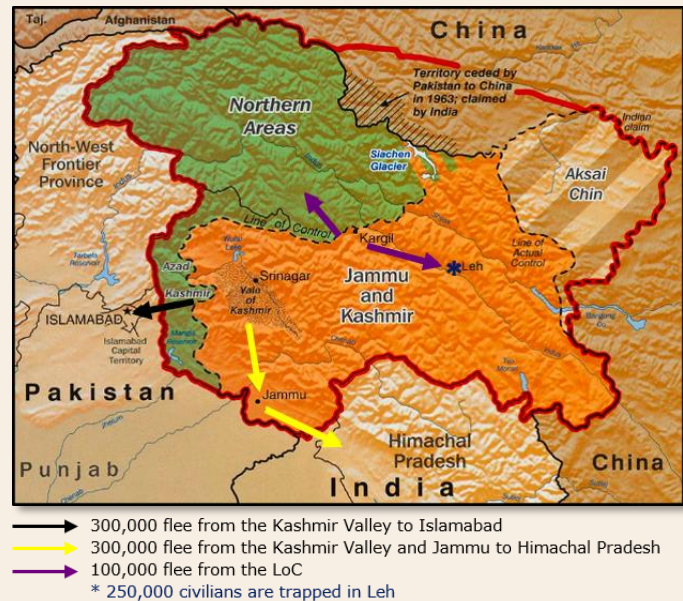
Kashmir's unclear border and disputed governance claims prevent a distinction between refugees and Internally Displaced Persons (IDPs). According to the United Nations' 1951 Convention on Refugees, only those that have crossed an international border are designated as refugees and are entitled to protection and aid from the host country. However, those that are displaced but remain within their national boundaries are considered IDPs and therefore have no claim to international assistance. Without a clear separation between refugees and IDPs, obligations of regional powers remain ambiguous. Protracted displacement has heightened the vulnerability of these populations, increased the region's instability, and further complicated the crisis in Kashmir.

Negotiation Issues

Human Rights Violations and Investigations -

After the recent crackdowns in Jammu and Kashmir, there have been renewed accusations of serious human rights abuses. International human rights activists are increasingly critical of the harsh measures implemented by the Indian military to maintain security in the region. The latest crackdown has helped re-focused the eyes of the world on the plight of the Kashmiris. Since details remain unclear, many have called for the Indian government to conduct a full investigation into the incident and punish those responsible for any wrongdoing. The Jammu & Kashmiri leaders have demanded an international investigation into the broader human rights violations in Jammu and Kashmir. Their call for an

investigation has strong UK and US support, who have both called for a UN investigation into the most recent incident. China and Russia are both skeptical of international investigations, believing that the protection of human rights is a domestic issue.



IDP and Refugee Issues - The United Nations' High Commissioner for Refugees' (UNHCR) mandate sets out protection and assistance measures for refugees, or those that have crossed borders. However, neither India nor Pakistan are signatories to the UNHCR conventions. In addition, UNHCR's mandate does not extend to the protection or assistance of IDPs. Under the UN's non-binding Guiding Principles to Internal Displacement, the responsibility for the protection and assistance of IDPs remains with the state in which people have been internally displaced. India and Pakistan's disputed control over Kashmir further complicates the responsibility for IDPs within the state.

Due to the massing of Indian and Pakistani troops on the LoC, roughly 100,000 civilians living along the Line have fled to areas bordering Pakistan and India, adding to the overcrowded IDP camps in

these areas. The overarching result of a continuing pattern of violent incidents has heightened fear and insecurity, over time leading to the displacement of 600,000 civilians within the region and across borders into India and Pakistan. Half of this population fled from Srinagar and the Kashmir Valley into Himachal Pradesh to avoid potential political violence. The other half fled from Azad Kashmir into Pakistan in response to India's attempt to stop the flow of militants, weapons, and supplies from Azad Kashmir into the Kashmir Valley.

Defining the status of refugees and IDPs remains a key challenge and will affect negotiations. Without a clear demarcation of each group, the obligations of states and aid agencies involved in the region remain ambiguous. Due to India's claim to everything within the boundary of the original princely state, it has traditionally viewed any displaced persons as migrants and not refugees. In the current crisis, India's consideration of refugees and IDPs is largely the same. In the lead up to these negotiations, the United States has publicly reminded India of its commitment to protect the humanitarian rights of its civilians, and how its international reputation could be damaged should more civilians be harmed. The Jammu & Kashmiri leaders have highlighted the IDP and refugee crisis to support their call for human rights investigations into Jammu and Kashmir.

Thus far, China has not allowed Kashmiri refugees to cross its border, which has increased the number of civilians trapped within the conflict zone. China has stated that it will continue to actively enforce its immigration policies, and that the situation in Jammu and Kashmir does not yet warrant a multilateral response. China has traditionally preferred to offer unilateral financial aid to countries experiencing humanitarian crisis rather than participate in UN-coordinated responses.



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